

25SMCP00401 25SMCP00401

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25SMCP00401 Hearing Date: July 2, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

TRIUMPH FINANCIAL SERVICES, LLC

nka TBK BANK, SSB,

Plaintiff,

v.

LUXURY LAB LLC dba DOLL FACE

BEAUTY, et al.,

Defendants.

Case No.:

25SMCP00401

Hearing Date: July 2, 2026

Trial Date:

None (post-judgment)

[TENTATIVE] RULING RE:

Motion to Enforce Sister-State Judgment

Background

Judgment Creditor Triumph

Financial Services, LLC n/k/a TBK Bank, SSB ("Triumph") obtained a judgment against Judgment Debtors Luxury Lab LLC dba Doll Face Beauty and Ross Hilton Kemper in the amount of \$553,859.29, plus attorneys' fees and costs of \$24,826.81, and interest at \$170.87 per day from April 16, 2025. The judgment was entered in the District Court of Dallas County, Texas, on June 9, 2025, and was domesticated in this Court as a sister-state judgment on July 21, 2025, pursuant to Code of Civil Procedure section 1710.25. (Murray Decl. ¶¶ 9-10, Exs. 8-9.)

Ross Hilton Kemper is a trustee, settlor, and beneficiary of the Ross Hilton Kemper & Linda Kerkorian Kemper Family Trust dated May 7, 2002 (the "Trust"). Ross Hilton Kemper and Linda Kerkorian Kemper are husband and wife. The Trust holds title to three parcels of real property: 23872 Malibu Road, Malibu, California; 1114 Calle Vista Drive, Beverly Hills, California; and 1115 La Altura Road, Beverly Hills, California 90210. (Murray Decl. ¶¶ 2-8, 12, Exs. 1-7.)

By this petition, Triumph seeks to levy on the Trust's assets to satisfy its judgment against Mr. Kemper, contending that because the Trust is Mr. Kemper's revocable living trust, its property is his and is reachable by his creditors under Probate Code section 18200. Triumph explains the order is needed because the Trust is not named in the judgment or writ, and the levying officer will not levy where the recorded title-holder does not match the named debtor.

This is the petition's second time before the Court. The Court granted a nearly identical, unopposed motion on March 24, 2026, where counsel specially appeared for Mr. Kemper to contest service. On April 24, 2026, the Court granted Mr. Kemper's motion to quash service by publication and vacated the March 24 order for lack of personal jurisdiction. Triumph re-served the petition by mail on Mr. Kemper's counsel on May 28, 2026, and the matter now comes before the Court on its merits.

No opposition has been

filed.

Legal Standard

Under Probate Code section

18200, “[i]f the settlor retains the power to revoke the trust in whole or in part, the trust property is subject to the claims of creditors of the settlor to the extent of the power of revocation during the lifetime of the settlor.” A creditor who has established a claim against the settlor may levy directly on the trust assets that are subject to revocation during the settlor’s lifetime.

(Bank One Texas, N.A. v. Pollack (1994) 24 Cal.App.4th 973, 980.)

Property held in a revocable inter vivos trust is deemed the property of the settlor, who effectively retains full ownership and control over any property transferred to the trust. (Steinhart v. County of Los Angeles (2010) 47 Cal.4th 1298, 1319-1320.)

Under Probate Code section

15400, a trust is presumed revocable “[u]nless [it] is expressly made irrevocable by the trust instrument.” That presumption applies, however, only “where the settlor is domiciled in this state when the trust is created, where the trust instrument is executed in this state, or where the trust instrument provides that the law of this state governs the trust.” The burden to establish that a trust is irrevocable rests with the party so asserting. (Prob. Code, § 15400.)

Analysis

A. The Trust Is Revocable and Its Assets

Are Subject to Triumph’s Claim.

As with the prior motion,

Triumph does not attach a copy of the Trust instrument, and there is therefore no direct evidence of its terms. Triumph again invokes the presumption of revocability under Probate Code section 15400. On the earlier motion, the Court declined to apply that presumption because Triumph had presented no evidence that Mr. Kemper was domiciled in California when the Trust was created, that the instrument was executed in California, or that the instrument provides that California law governs. The same is true here.

In any event, the recorded

instruments independently establish that the Trust is revocable. The deeds characterize the Trust as a “revocable living trust” and recite that the conveyances transfer the grantors’ interest into their revocable trust. Moreover, the 1115 La Altura Road property was transferred into and out of the Trust on numerous occasions between 2002 and 2018, conveyances that would not have been possible had the Trust been irrevocable. On this record, the Court concludes that Triumph has established that the Trust is revocable. As settlor of a revocable trust, Mr. Kemper is deemed the owner of the Trust property, which is accordingly subject to the claims of his creditors under Probate Code section 18200. The burden to establish that the Trust is irrevocable rests with Mr. Kemper, and no such showing has been made.

B. The Trust Assets Are Community Property Liable for the Judgment.

Under Family Code section 910, “the community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt.” The character of property as separate or community is determined at the time of its acquisition. (Fam. Code, § 760; *In re Marriage of Valli* (2014) 58 Cal.4th 1396, 1400.) Property acquired during marriage is presumptively community property, and the burden is on the party claiming a separate-property interest to prove it. Accordingly, to the extent the Trust assets are community property, they may be applied to satisfy the judgment against Mr. Kemper notwithstanding that Linda Kerkorian Kemper is not herself a named judgment debtor.

The Kempers have not filed an opposition. The recorded deeds reflect that the three properties were acquired by the Kempers during their marriage, and several of the deeds identify them as husband and wife holding title as community property before the properties were placed in the Trust. There is no claim or evidence that any of the three properties is the separate property of either spouse. The Court therefore concludes that the three identified properties are community property subject to levy.

Conclusion

Based on the foregoing, the

Court GRANTS Judgment Creditor's motion to enforce the Judgment against the following assets of the Ross Hilton Kemper & Linda Kerkorian Kemper Family Trust dated May 7, 2002: 23872 Malibu Road, Malibu California; 1114 Calle Vista Drive, Beverly Hills, California; and 1115 La Altura Road, Beverly Hills, California 90210.

Plaintiff to give notice.

Dated: July 2, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court